

COMPARISON · CANVAS · PROSE

# redline

Clause-by-clause comparison — verbatim language with inline ~~/tracking the amendment.~~

# SB-362 rewrote the opt-out link rule.

*Cal. Civ. Code §1798.135 · amendment SB-362 (2024)*

## KEY INSIGHT

A business that ~~collects~~ collects, sells, or shares consumers' personal information shall provide ~~two or more~~ at least one designated method for submitting requests to opt-out, including, at minimum, a clear and conspicuous link on the homepage titled "Your Privacy Choices," for use by consumers to ~~opt-out of the sale of~~ direct the business not to sell or share their personal information.

**why this matters.** SB-362 collapses sale and sharing into one duty and pins a uniform link title — homepage chrome and DSAR workflows both need a uniform UX.

# SB-362 rewrote the opt-out link rule — annotated.

*Cal. Civ. Code §1798.135 · amendment SB-362 (2024)*

## KEY INSIGHT

A business that ~~collects~~ collects, sells, or shares<sup>1</sup> consumers' personal information shall provide ~~two or more~~ at least one<sup>2</sup> designated method for submitting requests to opt-out, including, at minimum, a clear and conspicuous link on the homepage titled "Your Privacy Choices,"<sup>3</sup> for use by consumers.

- <sup>1</sup> **Scope expansion.** Collapses sale and sharing into one duty.
- <sup>2</sup> **Method floor.** One method is now sufficient; previously two were required.
- <sup>3</sup> **Link mandate.** Pins a uniform link title across all businesses.

# SB-362 — old, new, and why side-by-side.

Cal. Civ. Code §1798.135 · amendment SB-362 (2024)

OLD

A business that collects consumers' personal information shall provide two or more designated methods for submitting requests to opt out of the sale of their personal information.

NEW

A business that collects, sells, or shares consumers' personal information shall provide at least one designated method for submitting requests to opt-out, including a clear and conspicuous homepage link titled "Your Privacy Choices," for use by consumers to direct the business not

WHY

- Scope. Sale and sharing fold into one duty.
- Method floor. One method now suffices.
- Link title. Homepage label is mandatory and standardised.

## SB-362 — before and after, side by side.

*Cal. Civ. Code §1798.135 · amendment SB-362 (2024)*

### OLD

A business that collects consumers' personal information shall provide two or more designated methods for submitting requests to opt out of the sale of their personal information.

### NEW

A business that collects, sells, or shares consumers' personal information shall provide at least one designated method for submitting requests to opt-out, including a clear and conspicuous homepage link titled "Your Privacy Choices."

**why this matters.** The left column is the prior text; the right is the amendment. Reading across makes the scope expansion obvious.

## SB-362 — prior text struck, current below.

*Cal. Civ. Code §1798.135 · amendment SB-362 (2024)*

### ~~OLD — PRIOR TEXT~~

~~A business that collects consumers' personal information shall provide two or more designated methods for submitting requests to opt out of the sale of their personal information.~~

### NEW · CURRENT

A business that collects, sells, or shares consumers' personal information shall provide at least one designated method for submitting requests to opt-out, including a clear and conspicuous homepage link titled "Your Privacy Choices."

**why this matters.** Stacking keeps the reading order vertical when each passage is a full sentence or more.

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## When NOT to reach for redline.

**Code diffs.** For two code snippets side-by-side, use `compare-code`. redline is for natural language — legal, regulatory, contractual — not source code.

**Paraphrased clauses.** If the quoted text isn't verbatim, the diff is meaningless. Either render the actual clause with its diff, or move to `compare-prose` for narrative comparison.

**Long passage with one tiny diff.** If one word changed in a paragraph, quote only the affected sentence or two. A wall of unchanged text with one inline mark buries the change.

# See also.

## *RELATED COMPONENTS*

- `compare-code` — the diff is source code, not natural language
- `compare-prose` — two narrative alternatives, not verbatim amendments
- `before-after` — the change is structural state, not text
- `obligation-matrix` — comparing many regimes against shared obligations